

SEPARATION AND MUTUAL RELEASE AGREEMENT

This Separation and Mutual Release Agreement (the "Agreement") is made and entered into June 22, 2023 (the "Effective Date") and confirms the following understandings and agreements among Operation Underground Railroad, Inc., a Utah nonprofit corporation, (the "Company") and Tim Ballard (hereinafter referred to as "you" or "your").

WHEREAS, you were employed by the Company in various roles and served on the Company's Board of Directors, including without limitation as Chief Executive Officer and Chairman of the Board (your "Employment");

WHEREAS, your Employment ended effective June 22, 2023 (the "Separation Date");

WHEREAS, you and the Company desire to fully and finally settle all issues, differences, and claims, whether potential or actual, between you and the Company, including, but not limited to, any claims that might arise out of your Employment or the termination of your Employment;

WHEREAS, in connection with the separation from your Employment, you and the Company now desire to enter into this Agreement, which sets forth a mutually satisfactory arrangement concerning, among other things, separation from your Employment and payment of a severance to which you would otherwise not be entitled.

NOW, THEREFORE, in consideration of the promises set forth herein, you and the Company agree as follows:

1. **Employment Status and Effect of Separation.**

(a) You acknowledge, and the Company hereby accepts, your resignation from your Employment, and from any position, paid or unpaid, you held or hold at the Company, effective as of the Separation Date (to the extent you have not already done so, you hereby resign from all Employment and positions with the Company). From and after the Separation Date, you agree not to represent yourself as being an employee, officer, director, agent or representative of the Company for any purpose. However, you may refer to yourself as the founder of the Company, though you understand and agree that this is not a title of the Company, that you cannot represent the Company or claim to be a representative of the Company, and you have no authority to bind the Company or act in its behalf, or right to compensation, employment, Company property or assets, or input into Company matters, and you hereby agree not to represent to anyone anything to the contrary. However, nothing in this Section 1(a) limits your ability to encourage third parties to be donors or volunteers for the Company, or for them to otherwise support the Company or its causes.

(b) The Separation Date shall be the termination date of your Employment for purposes of participation in and coverage under all benefit plans and programs sponsored by or

through the Company. In connection with your separation, you will be entitled to receive amounts payable to you under any retirement and fringe benefit plans maintained by the Company and in which you participate in accordance with the terms of each such plan and applicable law.

(c) You acknowledge and agree that all of the payment(s) and other benefits you have received as of the Effective Date are in full discharge and satisfaction of any and all liabilities and obligations of the Company or any of its direct or indirect parent(s), subsidiaries, and/or affiliates (collectively, the "Company Group") to you, monetarily or with respect to employee benefits or otherwise, including but not limited to any and all obligations arising under any alleged written or oral employment agreement, policy, plan or procedure of the Company or any other member of the Company Group and/or any alleged understanding or arrangement between you and the Company or any other member of the Company Group.

2. Consideration and the Mutual Release and Waiver of Claims.

(a) Provided you do not revoke this Agreement, the Company will pay you, as a severance payment, 18 times your monthly current salary (a total of \$618,000.00) (the "Consideration"), less applicable deductions and withholdings. Subject to the terms of this Agreement, the Consideration will be paid to you in two lump sums: the first within 7 business days after the expiration of the Revocation Period of \$206,000.00 (being for 6 months' salary) and the second being by January 15, 2024 of \$412,000.00 (being for 12 month's salary). You acknowledge that the Consideration represents monies that are not earned wages and to which you would not be entitled but for this Agreement. As also part of the Consideration, the Company will convey to you unencumbered title to the vehicle used by you for Company business, a Jeep Grand Cherokee, VIN No. 1C4RJFAG1KC638407, and the Company will also cooperate in transferring your mobile number to a personal account and you may retain your Company mobile phone after you have removed all Confidential Information and Company property as required by this Agreement.

(b) For and in consideration of the Consideration, and for other good and valuable consideration set forth herein, you, for and on behalf of yourself and your heirs, administrators, executors and assigns, effective as of the Effective Date, do fully and forever release, remise and discharge the Company and each member of the Company Group, and each of their direct and indirect parents, subsidiaries and affiliates, together with their respective former and current officers, directors, board members, board officers, partners, shareholders, members, managers, owners, employees, contractors, operatives, attorneys, investigators, and agents (collectively, the "Company Parties"), from any and all claims up to the Effective Date which you had, may have had, or now have against the Company Parties, for or by reason of any matter, cause or thing, including without limitation any claim arising out of or attributable to your Employment or the termination of your Employment with the Company or any member of the Company Group whether for tort, breach of express or implied employment contract, intentional infliction of emotional distress, wrongful termination, failure to hire, re-hire, or contract with as an independent contractor, unjust dismissal, defamation, libel or slander, or under any federal, state or local law dealing with discrimination based on age, race, sex, national origin, handicap, religion, disability or sexual orientation. This release of claims includes, but is not limited to, all claims arising under the Civil Rights Act of 1866, 42 U.S.C. § 1981 *et seq.*; the Civil Rights Act of 1964, 42 U.S.C. § 2000 *et seq.*; the Civil Rights Act of 1991; the Rehabilitation Act of 1973, 29 U.S.C. § 701 *et seq.*; the Americans with Disabilities Act, 42 U.S.C. § 1201 *et seq.*; the Family and Medical Leave Act, 29 U.S.C. § 2601 *et seq.*; the National Labor Relations Act, 29 U.S.C. § 151 *et seq.*; the Fair Labor Standards Act, 29 U.S.C. § 201 *et seq.*; the Vietnam Era Veterans' Readjustment Assistance Act of 1974, 38 U.S.C. § 4212 *et seq.*; the Employee

Retirement Income Security Act of 1974, 29 U.S.C. § 1001 *et seq.*, the Occupational Safety and Health Act, 29 U.S.C. § 651 *et seq.*; the Worker Adjustment and Retraining Notification Act, 29 U.S.C. § 2101 *et seq.*; the Fair Credit Reporting Act, 15 U.S.C. § 1681 *et seq.*; the Age Discrimination in Employment Act of 1967, 29 U.S.C. § 621 *et seq.*; the Equal Pay Act of 1963, 29 U.S.C. § 206 *et seq.*; the Utah Antidiscrimination Act, Utah Code Ann. § 34A-5-1060 *et seq.*; the Utah Payment of Wages Act, Utah Code Ann. § 34-28-1 *et seq.*; the Utah Minimum Wage Act, Utah Code Ann. § 34-40-101 *et seq.*; the Utah Labor Rules; any other federal, state, or local human or civil rights, wage-hour, anti-discrimination, pension or labor law, rule and/or regulation, each as may be amended from time to time; contract or tort theories or claims arising from or related to any investigation of the Company, whether conducted internally by Company employees or by outside counsel or investigators; by all other federal, state and local laws, statutes, and ordinances; the common law; and any other purported restriction on an employer's right to terminate the employment of employees.

(c) As the full extent of their releases given hereunder, the Company and the Company Group fully release and discharge you from any duty or obligation to indemnify the Company and the Company Group, or hold them harmless, from any liability, actions, causes of actions, and claims of any nature, whether known or unknown, for or by reason of any matter, cause or thing brought by a third party against the Company and the Company Group, including without limitation any claim arising out of or attributable to your Employment or the termination of your Employment with the Company.

(d) As used in this Agreement, the term "claims" will include all claims, covenants, warranties, promises, undertakings, actions, suits, causes of action, obligations, debts, accounts, judgments, losses and liabilities, of whatsoever kind or nature, in law, equity or otherwise. The parties intend the release contained herein to be a general release of any and all claims to the fullest extent permitted by applicable law.

(e) You acknowledge and agree that as of the Effective Date you have no knowledge of any facts or circumstances that give rise to or could give rise to any claims under any of the laws listed in the preceding paragraph.

(f) Nothing contained in this Section 2 shall be a waiver of any claims that cannot be waived by law.

(g) Without limiting the scope of the release herein, the release also includes, without limitation, any claims or potential claims by you against any of the Company Group for wages, earned vacation, paid time off, bonuses, expenses, severance pay, and benefits earned through the date of the execution of this Agreement. Such amounts are not consideration for this Agreement.

(g) You understand that nothing contained in this Agreement, including, but not limited to, this Section 2, will be interpreted to prevent you from engaging in Protected Activity as set forth in Section 6. However, you agree that you are waiving the right to monetary damages or other individual legal or equitable relief awarded as a result of any such proceeding.

3. Right to Revoke and Rescind. You are hereby informed of your right to revoke your release of claims, insofar as it extends to potential claims under the Age Discrimination in Employment Act, by informing the Company of your intent to do so within 7 calendar days

following your signing of this Agreement (the "Revocation Period"). You understand that any such revocation or rescission must be made in writing and delivered by hand or by certified mail, return receipt requested, postmarked on or before the last day within the applicable revocation period to: Operation Underground Railroad, Inc. c/o Brent A. Andrews, 222 South Main, Suite 2200, Salt Lake City, UT 84101.

4. Opportunity for Review: Acceptance. You have until 21 days after the Effective Date (the "Review Period") to review and consider whether to sign this Agreement.

Changes to this Agreement, whether material or immaterial, will not restart the 21-day consideration period. During this time, the Company advises you to consult with an attorney of your choice. To accept this Agreement, and the terms and conditions contained herein, prior to the expiration of the Review Period, you must execute and date this Agreement where indicated below and return the executed copy of the Agreement to Operation Underground Railroad, Inc. c/o Brent A. Andrews, 222 South Main, Suite 2200, Salt Lake City, UT 84101. In the event of your failure to execute and deliver this Agreement prior to the expiration of the Review Period, this Agreement will be null and void and of no effect, and neither the Company nor any member of the Company Group will have any obligations hereunder.

By execution of this Agreement, you expressly waive any and all rights or claims arising under the Age Discrimination in Employment Act of 1967 ("ADEA") and: (a) You acknowledge that this waiver of rights or claims arising under the ADEA is in writing, and is knowing, voluntary and understood by you; (b) You expressly understand that this waiver specifically refers to rights or claims arising under the ADEA; (c) You expressly understand that by execution of this Agreement, you do not waive any rights or claims under the ADEA that may arise after the date the waiver is executed; (d) You acknowledge that the waiver of rights or claims arising under the ADEA is in exchange for the Consideration, which is above and beyond that to which you are entitled; (e) You acknowledge that the Company is expressly advising you to consult with an attorney of your choosing prior to executing this Agreement; (f) You have been advised by the Company that you are entitled to up to twenty-one (21) days from receipt of this Agreement within which to consider this Agreement, which period is referred to as the Review Period; (g) You acknowledge that you have been advised by the Company that you are entitled to revoke (in the event you execute this Agreement) this waiver of rights or claims arising under the ADEA within seven (7) days after executing this Agreement and that said waiver will not be, and does not become, effective or enforceable until the seven (7) day Revocation Period has expired; (h) The parties agree that should you exercise your right to revoke the waiver, this entire Agreement, and its obligations, including, but not limited to the obligation to provide you with Consideration and any other benefits, are null, void and of no effect; (i) You acknowledge and agree that you will communicate your decision to accept or reject this Agreement to the Company as provided herein; and (j) Nothing in this Agreement shall be construed to prohibit you from engaging in Protected Activity as set forth in Section 6, though you have waived any right to monetary relief. Should you elect to revoke this Agreement within the Revocation Period, a written notice of revocation shall be delivered to Operation Underground Railroad, Inc. c/o Brent A. Andrews, 222 South Main, Suite 2200, Salt Lake City, UT 84101.

5. Other Agreements. Your duties and obligations pursuant to Sections 4, 5, 9 and 10 of the Employee Non-Disclosure Agreement (the "Employment Agreement") signed by you shall survive this Agreement and remain in full force and effect, and the Consideration herein constitutes consideration for your promises and obligations pursuant to Section 4, 5, 9 and 10 of the Employment Agreement to which the provisions of this Agreement shall be applicable.

6. Protected Activity Not Prohibited.

(a) You understand that nothing in this Agreement in any way limits or prohibits you from engaging in any Protected Activity. For purposes of this Agreement, "Protected Activity," means filing a charge, complaint, or report with, or otherwise communicating, cooperating, or participating in any investigation or proceeding that may be conducted by, any federal, state or local government agency or commission, including the Securities and Exchange Commission, the Equal Employment Opportunity Commission, the Occupational Safety and Health Administration, and the National Labor Relations Board ("Government Agencies"). In addition, Protected Activity includes any actions to: form, join, or assist a union; choose a representative to bargain with us on your behalf; discuss and act together with other employees for your mutual benefit and protection with respect to terms and conditions of employment; choose not to engage in any of these protected activities.

(b) You understand that in connection with such Protected Activity, you are permitted to disclose documents or other information as permitted by law, and without giving notice to, or receiving authorization from, the Company. Notwithstanding the foregoing, you agree to take all reasonable precautions to prevent any unauthorized use or disclosure of any information that may constitute Company Confidential Information under this Agreement or the Employment Agreements to any parties other than the Government Agencies.

(c) You further understand that "Protected Activity" does not include the disclosure of any Company attorney-client privileged communications or attorney work product. Any language in this Agreement or the Employment Agreements regarding your right to engage in Protected Activity that conflicts with, or is contrary to, this Section is superseded by this Agreement.

(d) Pursuant to the Defend Trade Secrets Act of 2016, you are notified that an individual will not be held criminally or civilly liable under any federal or state trade secret law for the disclosure of a trade secret that (i) is made in confidence to a federal, state, or local government official (directly or indirectly) or to an attorney solely for the purpose of reporting or investigating a suspected violation of law, or (ii) is made in a complaint or other document filed in a lawsuit or other proceeding, if (and only if) such filing is made under seal. In addition, an individual who files a lawsuit for retaliation by an employer for reporting a suspected violation of law may disclose the trade secret to the individual's attorney and use the trade secret information in the court proceeding, if the individual files any document containing the trade secret under seal and does not disclose the trade secret, except pursuant to court order.

7. Confidential Information. You recognize and acknowledge that the Company's business and continued success depends upon the use and protection of confidential and proprietary business information, including, without limitation, the information and technology developed by or available through licenses to any member of the Company Group to which you had access during your Employment (all such information being "Confidential Information") – all of which you acknowledge as property of the Company. The phrase Confidential Information will be interpreted to include without limitation all information of any sort (whether merely remembered or embodied in a tangible or intangible form) that is (i) related to any member of the Company Group's or its subsidiaries' or affiliates' (including their predecessors) current or potential business, and (ii) not generally or publicly known. Confidential Information includes, without limitation, the information, knowledge, observations and data obtained by you while employed by the Company or any member of the Company Group and its subsidiaries (or any of their predecessors) or while performing services hereunder concerning the business or affairs of the Company or any member of the Company Group or any of its subsidiaries or affiliates; technical information concerning the Company's or any member of the Company Group's programs, products and services, including without limitation product or program data,

specifications, documentation, hardware configuration information, diagrams, flow charts, drawings, test results, formulas, algorithms, processes, inventions, research projects, engineering, and product development; software (including without limitation source code and object code), information concerning operations (ops), both foreign and domestic, developed by or for the Company; business information, including without limitation markets, cost information, profits, sales and fundraising information, accounting and unpublished financial information, business plans, markets, marketing and fundraising methods, donor and supporter lists (including, but not limited to, donors to the Company or any member of the Company Group on whom you called or with whom you became acquainted during the term of your Employment), and donor and supporter information (including without limitation donation history), purchasing techniques, supplier lists, supplier information (including without limitation pricing, preferences, discounts, and contracts) and fundraising and business strategies; information concerning investigations of the Company, whether conducted internally or through outside counsel, including without limitation the identity of those who participated; forwarding-looking or event-anticipating forecasts or predictions of events, happenings or circumstances to come as to the Company or its directors, officers or employees; information about employees, including their compensation, strengths, weaknesses and skills, recruiting strategies and goals and hiring criteria; and other information not generally known to the public, which has independent economic value to the owner or discloser of the information or which, if misused or disclosed, could reasonably be expected to adversely affect the business of the owner or discloser of the information. Provided, however, that the phrase does not include information that (a) was lawfully in your possession prior to disclosure of such information by the Company or any member of the Company Group; (b) was, or at any time becomes, available in the public domain other than through a violation of this Agreement; (c) is documented by you as having been developed by you outside the scope of your rendering services hereunder and independently; or (d) is furnished to you by a third party not under an obligation of confidentiality to the Company or any other member of the Company Group. Subject to Section 6 of this Agreement, you agree that you will not directly or indirectly use or divulge, or permit others to use or divulge, any Confidential Information for any reason, except as authorized in writing by the Company. You will be allowed to disclose such information of the Company or any member of the Company Group to the extent that such disclosure is:

- (w) duly approved in writing by the Company or by the member of the Company Group;
- (x) necessary for you to enforce your rights under this Agreement in connection with a legal proceeding;
- (y) required by law or by the order of a court or similar judicial or administrative body, provided that you notify the Company of such required disclosure promptly and cooperates with the Company in any lawful action to contest or limit the scope of such required disclosure; or
- (z) to report possible violations of federal law or regulation to any governmental agency or entity or making other disclosures that are protected under the whistleblower provisions of federal law or regulation. You do not need the prior authorization of the Company to make any such reports or disclosures and you are not required to notify the Company that you have made such reports or disclosures.

Your obligations under this Agreement are in addition to any obligations you have under state or federal law. You agree that you will not violate in any way the rights that the Company or any other member of the Company Group has with regard to trade secrets or proprietary or

Confidential Information. In addition to other damages or remedies the Company may have, in the event of your breach of this Section 7, the Company's obligation to continue paying the Consideration is terminated. Your obligations under this Section 7 are indefinite in term.

8. Non-Disparagement. The Company agrees to refrain from making any disparaging, negative or uncomplimentary statement or communication, whether public or private, regarding you. You agree to refrain from making any disparaging, negative or uncomplimentary statement or communication, whether public or private (including anonymous message boards and social media) regarding the Company or any of the Company Parties. You also agree to refrain from any tortious interference with the contracts, donations, support and relationships of the Company, including without limitation the Company's relationships with donors, volunteers, law enforcement and supporters. The Company's obligations under this Section are limited to statements or communications made by the Company's current officers and directors for as long as they serve as officers and directors. As used in this Section 8, "disparaging" means anything unflattering and/or negative, whether such communication is true or untrue.

Your duties hereunder expressly apply to, without limitation, (a) communication, whether oral or written, with members of the media and (b) publication of disparaging statements or posts on Facebook, LinkedIn, Twitter, Glassdoor, and other social media, regardless of whether the statements are accessible to the general public or limited to "friends," "followers," and the like. If you breach this Section 8, the parties agree that damage will result from such breaches, and should the Company fail to prove actual damages in an action to enforce this Section 8, the Company will be entitled to recover nominal damages, and attorneys' fees pursuant to Section 17 as the prevailing party. In addition to other damages or remedies the Company may have, in the event of your breach of this Section 8, the Company's obligation to continue paying the Consideration is terminated. All of the obligations in this Section 8 are subject to Section 6 governing Protected Activity and nothing in this Agreement shall be construed to prohibit you from filing a charge or complaint with the Equal Employment Opportunity Commission ("EEOC") or other local civil rights enforcement agency, or participating in any investigation conducted by the EEOC or other local civil rights enforcement agency, though you have waived any right to monetary relief, or otherwise complying with any obligations to provide truthful testimony or information as required by a court or by statute. This is a continuing obligation that shall survive this Agreement.

9. Knowing and Voluntary Waiver. You expressly acknowledge and agree that you (a) are able to read the language, and understand the meaning and effect, of this Agreement; (b) are specifically agreeing to the terms of the release contained in this Agreement because the Company has agreed to pay you the Consideration, which the Company has agreed to provide because of your agreement to accept it in full settlement of all possible claims you might have or ever had, and because of your execution, of this Agreement; (c) acknowledge that but for your execution of this Agreement, you would not be entitled to the Consideration; (d) were advised to consult with your attorney regarding the terms and effect of this Agreement; and (e) have signed this Agreement knowingly and voluntarily. You agree that no promise or inducement has been offered except as set forth in this Agreement, and that you are signing this Agreement without reliance upon any statement or representation by the Company or any representative or agent of the Company except as set forth in this Agreement. You agree and acknowledge that you have been provided with a reasonable and sufficient period of twenty-one (21) days within which to consider whether or not to accept this Agreement.

10. No Suit. Except as set forth in Section 6, you represent and warrant that you have not previously filed, and to the maximum extent permitted by law agree that you will not file, a complaint, charge or lawsuit against any of the Company Parties regarding any of the

claims released herein. If, notwithstanding this representation and warranty, you have filed or file such a complaint, charge or lawsuit, you agree that you shall cause such complaint, charge or lawsuit to be dismissed with prejudice and shall pay any and all costs required in obtaining dismissal of such complaint, charge or lawsuit, including without limitation reasonable attorneys' fees of the Company or any of the Company Group against whom you have filed such a complaint, charge or lawsuit.

11. Successors and Assigns. The provisions of this Agreement shall be binding on and inure to the benefit of your heirs, executors, administrators, legal personal representatives and assigns.

12. Severability. If any provision of this Agreement shall be held by any court of competent jurisdiction to be illegal, void or unenforceable, such provision shall be of no force or effect. The illegality or unenforceability of such provision, however, shall have no effect upon and shall not impair the enforceability of any other provision of this Agreement.

13. Return of Property. You shall return prior to the Effective Date, and not retain in any form or format, all Company Group documents, data, and other property in your possession or control. Company Group "documents, data, and other property" includes, without limitation, any computers, fax machines, access cards, keys, reports, manuals, records, product samples, inventory, correspondence and/or other documents or materials related to any member of the Company Group's business that you have compiled, generated or received while working for any member of the Company Group including all copies, samples, computer data, disks, or records of such material. After returning these documents, data, and other property, you will permanently delete from any electronic media in your possession, custody, or control (such as computers, cell phones, hand-held devices, back-up devices, zip drives, PDAs, etc.), or to which you have access (such as remote e-mail exchange servers, back-up servers, off-site storage, etc.), all documents or electronically stored images of any member of the Company Group, including writings, drawings, graphs, charts, sound recordings, images, and other data or data compilations stored in any medium from which such information can be obtained. For the purposes of this Section 13 Company documents shall not include publicly distributed marketing materials. Furthermore, you agree, on or before the Effective Date, to provide the Company with a list of any Company documents that you created or are otherwise aware to be password protected and the password(s) necessary to access such password protected documents. The Company's obligations under this Agreement are contingent upon you returning all Company Group documents, data, and other property as set forth above.

14. Non-Admission. Nothing contained in this Agreement will be deemed or construed as an admission of wrongdoing or liability on the part of you, the Company or any member of the Company Group.

15. Entire Agreement. This Agreement constitutes the entire understanding and agreement of the parties hereto regarding the subject matter hereof, including without limitation the termination of your Employment. This is an integrated agreement. Except as set forth in Section 5, this Agreement supersedes all prior negotiations, discussions, correspondence, communications, understandings and agreements between the parties relating to the subject matter of this Agreement.

16. Amendments; Waiver. This Agreement may not be altered or amended, and no

right hereunder may be waived, except by an instrument executed by each of the parties hereto.

No waiver of any term, provision, or condition of this Agreement, in any one or more instances, shall be deemed to be or construed as a further or continuing waiver of any such term, provision or condition or as a waiver of any other term, provision or condition of this Agreement.

17. ARBITRATION.

YOU AND THE COMPANY AGREE THAT ANY AND ALL DISPUTES ARISING OUT OF THE TERMS OF THIS AGREEMENT, YOUR EMPLOYMENT WITH THE COMPANY OR THE TERMINATION THEREOF, OR ANY OF THE MATTERS HEREIN RELEASED, ARE SUBJECT TO A PRIVATE AND CONFIDENTIAL ARBITRATION IN SALT LAKE COUNTY, UTAH, ADMINISTERED BY THE AMERICAN ARBITRATION ASSOCIATION ("AAA") IN ACCORDANCE WITH ITS RULES THEN IN EFFECT FOR THE RESOLUTION OF EMPLOYMENT DISPUTES (THE "AAA RULES"). THE ARBITRATOR WILL ADMINISTER AND CONDUCT ANY ARBITRATION IN ACCORDANCE WITH UTAH LAW, INCLUDING THE FEDERAL RULES OF CIVIL PROCEDURE, AND THE ARBITRATOR WILL APPLY SUBSTANTIVE AND PROCEDURAL UTAH LAW TO ANY DISPUTE OR CLAIM, WITHOUT REFERENCE TO ANY CONFLICT-OF-LAW PROVISIONS OF ANY JURISDICTION. TO THE EXTENT THAT THE AAA RULES CONFLICT WITH UTAH LAW, UTAH LAW WILL TAKE PRECEDENCE. NOTWITHSTANDING ANY OTHER PROVISION IN THIS AGREEMENT, THE ARBITRATION WILL BE PRIVATE AND CONFIDENTIAL. THE ARBITRATOR WILL HAVE THE POWER TO DECIDE ANY MOTIONS BROUGHT BY ANY PARTY TO THE ARBITRATION, INCLUDING WITHOUT LIMITATION MOTIONS FOR SUMMARY JUDGMENT AND/OR ADJUDICATION AND MOTIONS TO DISMISS AND DEMURRERS, PRIOR TO ANY ARBITRATION HEARING. MOTIONS FOR SUMMARY JUDGMENT, PARTIAL SUMMARY JUDGMENT OR SUMMARY ADJUDICATION WILL BE DECIDED ACCORDING TO RULE 56 OF THE FEDERAL RULES OF CIVIL PROCEDURE AND APPLICABLE CASE LAW. NOTWITHSTANDING ANY AAA RULES OR ARBITRATION PROCEDURE, IT IS THE INTENT OF THE PARTIES THAT THE ARBITRATOR WILL CONSIDER AND RULE ON ANY SUCH MOTIONS AS IF IN A FEDERAL COURT OF THE UNITED STATES. THE PARTIES AGREE THAT THE ARBITRATOR WILL ISSUE AN ORDER PROVIDING, THAT ALL PLEADINGS, MOTIONS, DISCOVERY, RESPONSES, DEPOSITIONS, TESTIMONY, CASE MANAGEMENT ORDERS, DECISIONS, AND DOCUMENTS EXCHANGED OR FILED IN RELATION TO THE ARBITRATION BE KEPT STRICTLY CONFIDENTIAL. THE DECISION OF THE ARBITRATOR WILL BE FINAL, CONCLUSIVE, AND BINDING ON THE PARTIES TO THE ARBITRATION. THE PARTIES AGREE THAT ANY PARTY MAY SEEK A SEPARATE ORDER FROM A COURT OF COMPETENT JURISDICTION ENFORCING THE ARBITRATOR'S ORDER PROTECTING THE DISCLOSURE OF PLEADINGS, MOTIONS, DISCOVERY RESPONSES, DEPOSITIONS, TESTIMONY, CASE MANAGEMENT ORDERS, DECISIONS, AND DOCUMENTS EXCHANGED OR FILED IN THE ARBITRATION, PROVIDED SUCH MOTION AND RESPONSES THERETO ARE FILED UNDER SEAL. THE PARTIES AGREE THAT THE PREVAILING PARTY IN ANY ARBITRATION IS ENTITLED TO INJUNCTIVE RELIEF IN ANY COURT OF COMPETENT JURISDICTION TO ENFORCE THE ARBITRATION AWARD, AS LONG AS IT IS ENTERED UNDER SEAL IN A COURT OF COMPETENT JURISDICTION. THE PARTIES TO THE ARBITRATION WILL EACH PAY AN EQUAL SHARE OF THE COSTS AND EXPENSES OF SUCH ARBITRATION, AND EACH PARTY WILL SEPARATELY PAY FOR ITS RESPECTIVE COUNSEL FEES AND EXPENSES; PROVIDED, HOWEVER, THAT THE ARBITRATOR WILL AWARD ATTORNEYS' FEES AND COSTS TO THE PREVAILING PARTY, EXCEPT AS PROHIBITED BY LAW. THE PARTIES HEREBY AGREE TO WAIVE THEIR RIGHT TO HAVE ANY DISPUTE BETWEEN THEM RESOLVED IN A COURT OF LAW BY A JUDGE OR JURY. NOTWITHSTANDING THE FOREGOING, THIS SECTION WILL NOT PREVENT EITHER PARTY FROM SEEKING INJUNCTIVE RELIEF (OR ANY OTHER

PROVISIONAL REMEDY) FROM ANY COURT HAVING JURISDICTION OVER THE PARTIES AND THE SUBJECT MATTER OF THEIR DISPUTE RELATING TO THIS AGREEMENT. SHOULD ANY PART OF THE ARBITRATION AGREEMENT CONTAINED IN THIS SECTION CONFLICT WITH ANY OTHER ARBITRATION AGREEMENT BETWEEN THE PARTIES, THE PARTIES AGREE THAT THIS ARBITRATION AGREEMENT WILL GOVERN. NOTHING IN THIS PROVISION LIMITS OR PROHIBITS EMPLOYEES FROM ENGAGING IN "PROTECTED ACTIVITY" AS DEFINED IN THIS AGREEMENT OR AS ESTABLISHED UNDER STATE OR FEDERAL LAW.

NOTWITHSTANDING THE FOREGOING, THE FOLLOWING CLAIMS ARE NOT COVERED BY THIS ARBITRATION PROVISION: CLAIMS FOR WORKERS' COMPENSATION BENEFITS, CLAIMS FOR UNEMPLOYMENT COMPENSATION BENEFITS, CLAIMS UNDER THE NATIONAL LABOR RELATIONS ACT, CLAIMS BASED UPON THE COMPANY'S EMPLOYEE BENEFITS AND WELFARE PLANS THAT CONTAIN AN APPEAL PROCEDURE OR OTHER PROCEDURE FOR THE RESOLUTION OF DISPUTES UNDER THE PLAN, AND CLAIMS THE COMPANY FOR INJUNCTION OR OTHER EQUITABLE RELIEF, INCLUDING WITHOUT LIMITATION CLAIMS FOR DISPARAGEMENT OR THE UNAUTHORIZED DISCLOSURE OF CONFIDENTIAL INFORMATION.

18. Injunctive Relief. You acknowledge that it would be difficult to fully compensate the Company for damages resulting from any breach of the provisions of this Agreement. Accordingly, in the event of any actual or threatened breach of such provisions, the Company shall (in addition to any other remedies that it may have) be entitled to temporary and/or permanent injunctive relief to enforce such provisions, and such relief may be granted without the necessity of proving actual damages.

19. No Contact. Except as set forth in Section 6, you covenant and agree, whether directly or through another person, not to retaliate against any person who you know participated in a company investigation who you understand, believe or suspect made complaints against you or made allegations against you. Except as set forth in Section 6, you also covenant and agree, whether directly or through another person, not to contact any person who made a complaint to the Company that you violated the law or company policy.

20. Confidentiality. Except as set forth in Section 6, the parties intend that this Agreement be confidential. You warrant that you have not disclosed, and agree that you will not in the future disclose, the terms of this Agreement, or the terms of the consideration to be paid hereunder, to any person other than your attorney, spouse, tax advisor, or representatives of the Equal Employment Opportunity Commission ("EEOC") or a comparable state agency, all of whom shall be bound by the same prohibitions against disclosure as bind you, and you shall be responsible for advising these individuals of this confidentiality provision and obtaining their commitment to maintain such confidentiality. You shall not provide or allow to be provided to any person this Agreement, or any copies thereof, nor shall you now or in the future disclose in any way any information concerning any purported claims, charges, or causes of action against the Company or any of the Company Group to any person, with the sole exception of communications with your spouse, attorney, tax advisor, or representatives of the EEOC or a comparable state agency, unless otherwise ordered to do so by a court or agency of competent jurisdiction.

21. Governing Law and Jurisdiction. This Agreement is governed by the laws of the State of Utah, without regard for choice-of-law provisions. You consent to personal and exclusive jurisdiction and venue in the State of Utah.

22. Continuing Support and Litigation Assistance. In consideration of the Consideration set forth above, you hereby agree to participate, as requested, in any of the Company's legal matters that were ongoing as of the Termination Date or that may arise in the future and relate to matters alleged to have occurred during the time period during which you were employed by the Company (the "Participation"). The Company agrees to reimburse reasonable attorneys' fees incurred by you in order for you to comply with the Company's requests for your Participation. The Participation may include, without limitation, interviews with attorneys, depositions, acting as a witness, providing documents requested by the Company, and assisting in responding to discovery. You agree that, as requested by the Company's Board of Directors or the Company's Chief Executive Officer, you and your counsel will travel within the United States in connection with the Participation. The Company shall provide reasonable notice for any such travel. The Company will reimburse you and your counsel for all reasonable expenses incurred in the performing your duties under this Section 22, provided that you have obtained prior approval from the Company's Chief Executive Officer or his or her designee for such expenses. You further agree that if subpoenaed, requested or noticed to testify, produce documents, provide an affidavit or declaration, or otherwise answer questions relating in any way to a legal claim against the Company, you will immediately notify Company of the date, time, and location of the requested testimony, meeting, affidavit, document production or legal proceeding involving a legal claim against the Company, as well as the name and phone number of the party and/or attorney seeking the information before complying with any such subpoena, request, or. Such notice shall be provided via email to Brent A. Andrews at baandrewsen@hullandhart.com.

You further hereby agree that, as requested by the Company, you will continue to cooperate with the Company so as to support and facilitate its existing relationships with donors, volunteers and others who help to advance the Company's cause. You also agree that you will execute and deliver any instruments and other documents and to do all other things reasonably requested by the Company for an orderly transition to new leadership. You agree to provide truthful information to the Company at all times. You also agree to cooperate generally with the Company and do everything reasonably necessary to facilitate the transition of your responsibilities to new leadership.

23. Statement. The Parties agree to cooperate and coordinate in connection with any announcement by the Parties as to your resignation from your positions at the Company.

[Signature Page Follows]

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

TIMOTHY B. BALLARD

OPERATION UNDERGROUND

	RAILROAD, INC.
Timothy B. Ballard	By: _____
	Its: _____
Date	Date: _____

**THIS AGREEMENT IS NOT TO BE EXECUTED UNTIL AFTER THE SEPARATION
OF EMPLOYMENT HAS OCCURRED**

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